

Notaries Rules, 1956

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[In exercise of the powers conferred by section 15 of the Notaries Act, 1952 \(53 of 1952](#)

[\), the Central Government hereby makes the following rules, namely:-](#)

[1.](#)

[Short title. - These \[rules\] may be called The Notaries Rules, 1956.](#)

[2.](#)

[Definitions. - In these rules, unless the context otherwise requires,-](#)

(a)

"appropriate Government" means, in relation to a notary appointed by the Central Government, the Central Government and in relation to a notary appointed by the State Government, the State Government;

(b)

"Form" means a Form appended to these Rules;

(c)

"the Act" means the Notaries Act, 1952 (53 of 1952

);

(d)

["Schedule" means the Schedule appended to these rules.]

[2-A. A person applying in Form II for appointment as a notary may submit the memorial direct to the Competent Authority of the Appropriate Government.]

[Inserted by Notification No. G.S.R. 700 (E) dated 24.9.2009 (w.e.f. 15.2.1956)]

3.

[Qualifications for appointment as a notary.

- No person shall be eligible for appointment as a notary unless on the date of the application for such appointment,-]

(a)

[a person had been practicing at least for ten years, or

[Substituted by G.S.R. 17(E), dated 5.1.2000 (w.e.f. 5.1.2000).]

(aa)

a person belonging to Scheduled Castes/Scheduled Tribes and other Backward Classes had been practicing at least for seven years, or

(ab)

a woman who had been practicing at least for seven years, as a legal practitioner, or]

(b)

[he had been a member of the Indian Legal Service under the Central Government, or

[Substituted by G.S.R. 370(E), dated 8.7.1997 (w.e.f. 8.7.1997).]

(c)

he had been at least for ten years,-

(i)

a member of Judicial Service; or

(ii)

held an office under the Central Government or a State Government requiring special knowledge of law after enrollment as an advocate; or

(iii)

held an office in a department of Judge Advocate General or in the legal department of the armed forces.]

4.

Application for appointment as a notary. - [(1) A person may make an application for appointment as a notary (hereinafter called "the applicant") online in Form I or Form II as applicable, addressed to such officer or authority (hereinafter referred to as the "competent authority") of the appropriate Government as that Government may, by notification in the Official Gazette, designate in this behalf].

(2)

[The memorial shall be drawn by a person referred to in clause (a) of rule 3 in accordance with Form I and by a person referred to in clauses (b) and (c) of the said rule in accordance with Form II.]

[Substituted by G.S.R. 370(E), dated 8.7.1997 (w.e.f. 8.7.1997).]

[***]

[Omitted 'Sub-rule (2A)and (3)' by Notification No. G.S.R. 821(E), dated 5.11.2019 (w.e.f. 14.2.1956).]

[* * *]

[Rule 5 omitted by G.S.R. 151, dated 14.3.1958.]

6.

[Preliminary action on application.

-]

[(1) The competent authority shall examine every application received by him and if he is satisfied that the application is not complete in all respects or the applicant does not possess the qualifications specified in rule 3, or that any previous application of the applicant for appointment as a notary was rejected within six months before the date of the application, shall reject it summarily and inform the applicant accordingly.]

[Substituted by G.S.R. 114(E), dated 24.2.2009 (w.e.f. 1.3.2009).]

(2)

[If the competent authority does not reject the application under sub-rule (1),-]

[Substituted by G.S.R. 151, dated 14.3.1958.]

[* * *]

[Clause (a) omitted by G.S.R. 370(E), dated 8.7.1997 (w.e.f. 8.7.1997).]

(b)

[he may, if he thinks fit, ascertain from any Bar Council, Bar Association, Incorporated Law Society or other authority in the area where the applicant proposes to practice, the objections, if any, to the appointment of the applicant as notary, to be submitted within the time fixed for the purpose.]

[Substituted by G.S.R. 151, dated 14.3.1958.]

7.

Recommendation of the competent authority. - [(1) The competent authority shall, after holding such inquiry as he thinks fit and after giving the applicant an opportunity of making his representations against the objections, if any, received within the time fixed under sub-rule (2) of rule 6, make a report to the appropriate Government recommending that the applicant may be allowed to appear before the Interview Board.]

(2)

The competent authority shall also make his recommendation in the report under sub-rule (1) regarding the persons by whom the whole or any part of the costs of the application including the cost of hearing, if any, shall be borne.

(3)

In making his recommendation under sub-rule (1), the competent authority shall have due regard to the following matters, namely:-

(a)

whether the applicant ordinarily resides in the area in which he proposes to practice as a notary;

(b)

whether, having regard to the commercial importance of the area in which the applicant proposes to practice and the number of existing notaries practicing in the area, it is necessary to appoint any additional notaries for the area;

(c)

whether, having regard to his knowledge and experience of commercial law and the nature of the objections, if any, raised in respect of his appointment as a notary, and in the case of a legal practitioner also to the extent of his practice, the applicant is fit to be appointed as a notary;

(d)

where the applicant belongs to a firm of legal practitioners, whether, having regard to the number of existing notaries in that firm, it is proper and necessary to appoint any additional notary from that firm; and

(e)

where applications from other applicants in respect of the area are pending, whether the applicant is more suitable than such other applicants.

[Provided that in respect of categories (b) and (c), if the memorial in Form II is found to be in order, the competent authority may issue certificate of practice as Notary directly by exempting appearance before the Interview Board.]

[Inserted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.2.1956).]

[7-A. Constitution of the Interview Board.

(1)

If the appropriate Government allows that the applicant may be asked to appear before the Interview Board, the competent authority shall inform the applicant to appear before the Interview Board, on the date, time and place fixed, to judge the competency of the applicant for being appointed as a notary. The Interview Board shall submit its

recommendations to the appropriate Government.]

(2)

[For the said purpose, one or more Interview Boards shall be constituted by the appropriate Government from amongst its officers dealing with legal matters and the Chairperson of every Interview Board shall be an officer not below the rank of Joint Secretary or Law Officer of that Government.]

[Substituted by G.S.R. 700(E), dated 24.9.2009 (w.e.f. 24.9.2009).]

[Provided that the appropriate Government may dispense with the condition of holding of interviews for which reasons are to be recorded in writing.]

[Inserted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2016).]

7B.

[Transitional provision.

(1)

All the memorials received by the Competent Authority till 28th February, 2009 and which are pending shall be processed/examined in accordance with the provisions of the rules as amended by the Notaries (Amendment) Rules, 2009.

(2)

The fresh memorials shall only be submitted on or after 1st July, 2009.]

8.

Appointment of a notary. - [(1)]

[On receipt of the recommendations of the Interview Board the appropriate Government shall consider the recommendation and shall,-]

[Substituted by G.S.R. 114(E), dated 24.2.2009 (w.e.f. 1.3.2009).]

(a)

[allow the application in respect of the whole of the area to which it relates; or

[Substituted by G.S.R. 114(E), dated 24.2.2009 (w.e.f. 1.3.2009).]

(b)

allow the application in respect of any part of the area to which it relates; or

(c)

reject the application, and shall also make such orders as the Government thinks fit regarding the persons by whom the whole or any part of the cost of the application including the cost of hearing, if any, shall be borne.]

(2)

[An applicant shall be informed of every order passed by the appropriate Government under sub-rule (1).

(3)

Any applicant whose application has been rejected]

[Inserted by G.S.R. 151, dated 14.3.1958.]

[or allowed in respect of only a part of the area to which it relates]

[Inserted by G.S.R. 1056, dated 8.11.1958.]

[or against whom an order as to cost has been made under sub-rule (1) may, within sixty days of the date of the order apply to the appropriate Government for reviewing the order and that Government may, after making such further inquiry as it thinks fit pass such order as it considers necessary.]

[Inserted by G.S.R. 151, dated 14.3.1958.]

(4)

[]

[Renumbered by G.S.R. 151, dated 14.3.1958.]

Where the application is allowed, the appropriate Government shall appoint the applicant as a notary and direct his name to be entered in the Register of Notaries maintained by that Government under section 4 of the Act and issue to him a certificate on payment of prescribed fees authorizing him to practice in the area to which the application relates or in such part thereof as the appropriate Government may specify in the certificate, as a notary for a period of [five years]

[Substituted by G.S.R. 262(E), dated 28.3.2000 (w.e.f. 28.3.2000).]

from the date on which the certificate is issued to him.

[(4-A) The appropriate Government may on and after the 9th May, 2001, appoint notaries in a State or Union territory, as

the case may be, not exceeding the number of notaries specified in the Schedule:

Provided that the number of notaries whose certificate of practice has been renewed under sub-section (2) of section 5 of the Act shall be included in the total number of notaries appointed for the purpose of counting the total number of notaries specified in the Schedule:

Provided further that if in a State or Union territory the number of notaries appointed before the ninth day of May, 2001 exceeds the number of notaries specified in the Schedule, such notaries shall continue to be so appointed in that State or Union territory, as the case may be.]

[Inserted by G.S.R. 330(E), dated 9.5.2001 (w.e.f. 10.5.2001).]

[Provided also that in case, request for enhancement of quota is received from Union Territory or the State concerned, the same shall be considered as per the following criteria:-

(a)

if there is an increase in the population of the concerned State or the Union Territory;

(b)

if there is increase in the number of districts or tehsil or taluka of the concerned State of Union Territory.]

[[5]]

[Inserted by S.R.O. 1353, dated 6.6.1956.]

[The Register of Notaries shall be in Form II-A and the certificate of practice shall be in Form II-B.]

[Inserted by S.R.O. 1353, dated 6.6.1956.]

]

[Inserted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2016).]

8A.

[Extension of area of practice.

- A notary public who is already in possession of a certificate of practice in respect of a particular area, may for sufficient reasons, apply for extension of his area of practice. If the original certificate of practice had been issued by a State Government and the new area of practice applied for lies within the territory of that State, the application for extension of the area of practice shall be made to that State Government. In all cases where the original certificate of practice had been issued by the Central Government, the application for extension of the area of practice shall be made to the Central Government. Applications for the extension of the area of practice where the new area lies either wholly outside the State or partly inside and partly outside the State which granted the original certificate shall be made to the Central Government for the issue of a fresh certificate. The State Government or the Central Government, as the case may be, shall, after considering the reasons stated in the application and other factors, pass such orders thereon as it may deem fit. Any extension of the area of the practice shall not have the effect of extending the period of validity of the original certificate beyond the period of]

[five years]

[Substituted by G.S.R. 262(E), dated 28.3.2000 (w.e.f. 28.3.2000).]

[specified in rule 8(4).]

[Inserted by G.S.R. 1056, dated 30.10.1958.]

8B.

[Renewal of Certificate of Practice.

- The Certificate of Practice issued under sub-rule (4) of rule 8 may be renewed for a further period of five years on payment of prescribed fee. An application for renewal of Certificate of Practice shall be submitted online in Form XVI to the appropriate Government before (six months) from the date of expiry of its period of validity.]

9.

[Fees for issue and renewal of certificate of practice and extension of area.

- The fees for issue and renewal of certificate of practice and extension of area shall be as under:-

(a)

Issue of certificate of practice

Rs. 1000

(b)

Extension of area of practice

Rs. 750

(c)

Renewal of certificate of practice

Rs. 500

(d)

Issue of a duplicate certificate of practice

Rs. 300

10.

Fees payable to a notary for doing any notarial act. -]

[(1) Every notary may charge fees not exceeding the rates mentioned below, namely:-

(

(a)

For noting an instrument

If the amount of the instrument does not exceed rupees 10,000

Rs. 35

If it exceeds rupees 10,000 but does not exceed rupees 25,000

Rs. 75

If it exceeds rupees 25,000 but does not exceed rupees 50,000

Rs. 110

If it exceeds 50,000

(b)

For protesting an instrument:-

If the amount of the instrument does not exceed rupees 10,000

Rs. 35

If it exceeds rupees 10,000 but does not exceed rupees 25,000

Rs 75

If it exceeds rupees 25,000 but does not exceed rupees 1,00,000

Rs. 110

If it exceeds rupees 1,00,000

Rs. 150

(c)

For recording a declaration of payment for honour

Rs. 75

(d)

Duplicate protests

half the charge for original

(e)

For verifying, authenticating, certifying or attesting the execution of any instrument

Rs. 15

(f)

For presenting any promissory note, hundior bill of exchange for acceptance or payment or demanding better security

Rs. 35

(g)

for administering oath to, or taking affidavit from any person

Rs. 15

(h)

For preparing any instrument intended to take effect in any country or place outside Indian in such form an language as may conform to the law of the place where such deed is intended to operate

Rs. 150

(i)

For attesting or authenticating any instrument to take effect in any country or place outside India in such form and language as may conform to the law of the place where such deed is intended to operate

Rs. 150

(j)

For translating and verifying the translation of any document from one language to another

Rs. 75

(k)

For noting and drawing up ship's protest, boat protest or protest relating to demurrage and other commercial matters

Rs. 150

(l)

For certifying copies of documents as true per page copies of the original

Rs. 5 per page minimum Rs. 10

(m)

For any other notarial act

Such sum as the appropriate Government may fix from time to time.]

]

[Substituted by G.S.R. 630(E), dated 21.7.2000 (w.e.f. 21.7.2000).]

[(2) The rates of fees to be charged by a notary shall be displayed by him in conspicuous place inside as well as outside his chamber or office.

(3)

In addition to the above fees, a notary may charge the traveling allowance by road or by rail at the rate of rupees five per kilometer.]

[Substituted by G.S.R. 370(E), dated 8.7.1997 (w.e.f. 8.7.1997).]

11.

Transaction of business by a notary. - (1) A notary in transacting the business under the Act shall use the Forms set forth in the Appendix to these rules.

(2)

[Besides recording declaration of payment for honor a notary shall also register nothings and protests made. Every notary shall maintain a notarial register in the prescribed Form XV.]

(3)

Where any demand of acceptance or payment or better security has been made by a clerk, a notary shall, after examination of the entry in the Register relating to such demand, affix his signature thereto, and cause the clerk to affix his signature also to the entry.

(4)

Each notary shall, before bringing the Notarial Register into use, add a certificate on the title page specifying the number of pages it contains. Such certificate shall be signed and dated by the notary.

(5)

Every notary shall permit the District Judge or such officers as the appropriate Government from time to time appoint in this behalf to inspect his register at such times, not often than twice a year, as the District Judge or officer may fix. District Judge or officer appointed by the State Government will have power to lodge a report to the appropriate Government for taking action against a notary.

(6)

When the original instrument is in a language other than, English, any noting or protest or entry in his register which has to be made in respect of the instrument by a notary may be made either in that language or in English.

(7)

In making presentment of bills or notes a notary shall observe the provisions of Chapter V of the Negotiable Instruments Act, 1881 (

26 of 1881

).

(8)

The notary may-

(1)

draw, attest or certify documents under his official seal including conveyance of properties;

(2)

note and certify the general transactions relating to negotiable instruments;

(3)

prepare a will or other testamentary documents; and

(4)

prepare and take affidavits for various purposes for his notarial acts.

(9)

Every notary shall grant a receipt for the fees and charges realized by him and maintain a register showing all the fees and charges realized.

12.

[Seal of notary.

- Every notary shall use a plain circular seal of a diameter of 5 cm. as indicated by a drawing given below, bearing his name, the name of the areas within which he has been appointed to exercise his functions, the registration number and the circumscription "NOTARY", and the name of the Government which appointed him.]

13.

[Inquiry into the allegations of professional or other misconduct of a notary.

- [(1) An inquiry into the misconduct of a notary may be initiated either suo motu by the appropriate Government or on a complaint received in Form XIII.]

[Substituted by G.S.R. 1056, dated 30.10.1958.]

(2)

[Every such complaint shall contain the following particulars, namely:-

(a)

the acts and omissions which, if proved, would render the person complained against unfit to be a notary;

(b)

the oral or documentary evidence relied upon in support of the allegations made in the complaint.

(3)

The appropriate Government shall return a complaint which is not in the proper Form or which does not contain the aforesaid particulars to the complainant for representation after compliance with such objections and within such times as the appropriate Government may specify:

Provided that if the subject-matter in a complaint is, in the opinion of the said Government substantially the same as or covered by, any previous complaint and if there is no additional ground, the said Government shall file the said complaint without any further action and inform the complainant accordingly.

(4)

Within sixty days ordinarily of the receipt of complaint, the appropriate Government shall send a copy thereof to the notary at his address as entered in the Registered of Notaries.]

[Substituted by S.O. 774(E), dated 9.3.1957.]

[(4-A) Where an inquiry is initiated, suo motu by the appropriate Government, the appropriate Government shall send to the notary a statement specifying the charge or charges against him, together with particulars of the oral or documentary evidence relied upon in support of such charge or charges.]

[Inserted by G.S.R. 1056, dated 30.10.1958.]

(5)

[]

[Substituted by S.O. 774(E), dated 9.3.1957.]

[A notary against whom an inquiry has been initiated may, within fourteen days of the service on him of a copy of the complaint under sub-rule (4) or of the statement of the charges under sub-rule (4-A), as the case may be,]

[Substituted by G.S.R. 1056, dated 30.10.1958.]

[or within such time as may be extended by the appropriate Government, forward to that Government a written statement in his defense verified in the same manner as a pleading in a Civil Court.

(6)

If on a perusal of]

[Substituted by S.O. 774(E), dated 9.3.1957.]

[the written statement,]

[Substituted by G.S.R. 1056, dated 30.10.1958.]

[if any, of the notary concerned and other relevant documents and papers, the appropriate Government consider that there is a prima facie case against such notary, the appropriate Government shall cause an inquiry to be made in the matter by the competent authority. If the appropriate Government is of the opinion that there is no prima facie case against the notary concerned,]

[Substituted by S.O. 774(E), dated 9.3.1957.]

[the complaint or charge shall be filed]

[Substituted by G.S.R. 1056, dated 30.10.1958.]

[and the complainant and the notary concerned shall be informed accordingly.]

[Substituted by S.O. 774(E), dated 9.3.1957.]

(7)

[Every notice issued to a notary under this rule shall be sent to him by registered post. If any such notice is returned unserved with an endorsement indicating that the addressee has refused to accept the notice or the notice is not returned unserved within a period of thirty days from the date of its dispatch, the notice shall be deemed to have been duly served upon the notary.]

[Substituted by G.S.R. 370(E), dated 8.7.1997 (w.e.f. 8.7.1997).]

(8)

[It shall be the duty of the appropriate Government to place before the competent authority all facts brought to its knowledge which are relevant for the purpose of an inquiry by the competent authority.

(9)

]

[Substituted by S.O. 774(E), dated 9.3.1957.]

[A notary who is proceeded against]

[Substituted by G.S.R. 1056, dated 30.10.1958.]

[shall have right to defend himself before the competent authority either in person or through a legal practitioner or any other notary.

(10)

Except as otherwise provided in these rules, the competent authority shall have the power to regulate his procedure relating to the inquiry in such manner as he considers necessary and during the course of inquiry, may examine witnesses and receive any other oral or documentary evidence.

(11)

The competent authority shall submit his report to the Government entrusting him with the inquiry.

(12)

(a)

The appropriate Government shall consider the report of the competent authority, and if in its opinion a further inquiry is necessary may cause such further inquiry to be made and a further report submitted by the competent authority.

(b)

If after considering the report of the competent authority, the appropriate Government is of the opinion that action should be taken against the notary the appropriate Government may make an order-

(i)

canceling the certificate of practice and perpetually debarring the notary from practice; or

(ii)

suspending him from practice for a specified period; or

(iii)

letting him off with a warning, according to the nature and gravity of the misconduct of the notary proved.

(13)

Notification of removal. - The removal of the name of any notary from the Register of Notaries from practice, as the case may be, shall be notified in Official Gazette and shall also be communicated in writing to the notary concerned.]

[Substituted by S.O. 774(E), dated 9.3.1957.]

14.

[Submission of returns.

- Every notary shall, in the first week of January every year, submit to the appropriate Government, an annual return online in Form XIV of the notarial acts done by him during the preceding year].

15.

Each notary shall have an office within the area mentioned in the certificate issued to him under rule 8 and he shall exhibit it in a conspicuous place threat a board showing his name and his designation as a notary.

16.

If a notary has to deal with a case which does not in terms attract any of the Forms prescribed, the notary should adopt the form nearest to his case with such modifications thereto as he thinks the exceptional peculiarities of the case to justify.

17.

Annual publication of the list of notaries. - The list of notaries to be published by the Central Government and every State Government under section 6 of the Act, shall be in the following Form :-

Sl.No.

Name of Notary

Residential and professional address

Qualifications

Area in which he is authorized to practice

Remarks

[THE SCHEDULE]

[See rule 8 (4-A)]

Name of State/Union territory

Maximum number of notaries to be appointed by the Central Government

Maximum number of notaries to be appointed by State Government or Unionterritory Administration

(1)

(2)

(3)

1.

Andhra Pradesh

[865]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 153.2.1956).]

[1306]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 153.2.1956).]

2.

Assam

575

575

3.

Bihar

925

[1925]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 153.2.1956).]

4.

Gujarat

[5000]

[Substituted '3000' by Notification No. G.S.R. 26(E), dated 11.1.2019 (w.e.f. 14.2.1956).]

[2900]

[Substituted '1407' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

5.

Kerala

[1250]

[Substituted '1000' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

[1250]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

6.

Madhya Pradesh

1,125

[2500]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2.1956).]

7.

Tamil Nadu

[1700]

[Substituted '1360' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

[2500]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2.1956).]

8.

Maharashtra

[4200]

[Substituted '3700' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

[1,313]

[Substituted by G.S.R. 296(E), dated 19.5.2006 (w.e.f. 19.5.2006).]

9.

Karnataka

[2000]

[Substituted '1500' by Notification No. G.S.R. 26(E), dated 11.1.2019 (w.e.f. 14.2.1956).]

[1,013]

[Substituted by G.S.R. 686(E), dated 31.10.2007 (w.e.f. 31.10.2007).]

10.

Orissa

750

750

11.

Punjab

[1300]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

425

12.

Rajasthan

[2000]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

[2000]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2.1956).]

13.

Uttar Pradesh

[2650]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

[2,625]

[Substituted by G.S.R. 86(E), dated 14.2.2007 (w.e.f. 15.2.2007).]

14.

West Bengal

450

[3625]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2.1956).]

15.

Jammu & Kashmir

350

[1500]

[Substituted '525' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

16.

Nagaland

200

200

17.

Haryana

[1500]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

475

18.

Himachal Pradesh

300

[450]

[Substituted by G.S.R. 764(E), dated 3.11.2008 (w.e.f. 3.11.2008).]

19.

Manipur

225

225

20.

Tripura

100

100

21.

Meghalaya

175

175

22.

Sikkim

100

100

23.

Mizoram

200

200

24.

Arunachal Pradesh

325

325

25.

Goa

50

[450]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

26.

Uttaranchal

325

[425]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

27.

Chhattisgarh

400

[1350]

[Substituted by Notification No. G.S.R. 429(E), dated 18.4.2016 (w.e.f. 15.3.2.1956).]

28.

Jharkhand

450

450

28A. [

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

Telangana

800

800]

29.

Delhi

[1600]

[Substituted '1000' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

[325]

[Substituted by G.S.R. 460(E), dated 25.6.2001 (w.e.f. 26.6.2001).]

30.

Andaman and Nicobar Islands

50

50

31.

Lakshadweep

25

25

32.

Dadra and Nagar Haveli

25

25

33.

Daman & Diu

50

50

34.

[Puducherry

[Substituted 'Pondicherry' by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

150]

100

35.

Chandigarh

[200]

[Substituted by Notification No. G.S.R. 815(E), dated 23.8.2018 (w.e.f. 14.2.1956).]

25

[FORM I]

[Substituted by Notification No. G.S.R. 821(E), dated 5.11.2019 (w.e.f. 14.2.1956).]

[See rule 4 (2)]

1. Name of the applicant

.....

2. Father's/Husband's name.....

Photograph

3. Date of Birth.....

4. Whether SC/ST/OBC/General.....

5. Address (residence).....

Pin.....

Telephone/Mobile.....Fax.....E-Mail.....

Address (Office).....

Pin.....Aadhaar No.....PAN No

Telephone/Mobile.....Fax.....E-Mail.....

6. Educational Qualifications (Please upload self-attested scanned copies).

7. Enrolment number and date of the Bar Council (Please upload self-attested copy)

8. Practising in.....

Civil side.....

Criminal side.....

Taxation side.....

Revenue Courts.....

9. Whether income-tax assessee.....

10. The application of (name of the applicant in block letters) sheweth.....

1. That the applicant is a person eligible for appointment as a notary under the Notaries Act, 1952, and clause (a) of rule 3 of the Notaries Rules, 1956;

2. That the applicant practices as an Advocate (herein state the name of the local area and name of court where he intends to practice as an Advocate)

3. That the number of notaries practicing in the local area is insufficient for the requirements thereof (Statement to be added stating grounds for requirement of more Notaries)

4. That no previous application of the memorialist has been rejected or withdrawn by him, within the preceding six months;

The applicant, therefore, prays that the Government be pleased to appoint and admit him as a notary under and by virtue of the Notaries Act, 1952 (

53 of 1952

), and clause (a) of rule 3 of the Notaries Rules, 1956, to practice in (Mention here the name of the local area where he/she intends to practice as Notary).

Dated.....day of.....20.....

.....

Signature of the applicant

Note: (1) No hard copies or advance copies of the application in Form I and Form II will be accepted. The following documents shall be submitted at the time of the interview: -

(i)
Proof pertaining to date of birth, copy of Aadhaar and PAN Card (self-attested)

(ii)
Copy of Graduation Degree. (Self-attested).

(iii)
Copy of Law Degree. (Self-attested).

(iv)
Copy of Certificate of enrolment issued by the Bar Council concerned (self-attested).

(v)
No Objection Certificate issued by the Bar Council concerned State need to be submitted on selection as notary.

(vi)

Experience certificate from the concerned District Judge or Presiding Officer of the court or Tribunal where the applicant practices as an Advocate.

[FORM II]

[Form II Substituted by G.S.R. 172 (E), dated 12-3-2001 (w.e.f. 12-3-2001).]

[See rule 4(2)]

1. Name of the applicant

2. Father's/Husband's name.....

Photograph

3. Date of Birth.....

4. Whether SC/ST/OBC/General.....

5. Address (Residence).....

Pin.....

Telephone.....Fax.....E-Mail.....

Address

(Office).....

Pin.....

Telephone.....Fax.....E-Mail.....

6. Educational Qualifications

7. Date of joining Government service.....

8. Date of retirement.....

9. Post held at the time of retirement.....

10. Area, where the memorialist intends to practise as Notary.....

Dated.....day of..... 20.....

.....

Signature of the applicant

Note. - Necessary proofs about eligibility under rule 3(b) and (c) of the Notaries Rules, 1956 is to be attached. Rule 3(b) and (c) are as follows:-

"3. Qualifications for appointment as a notary. - No person shall be eligible for appointment as a notary unless on the date of the application for such appointment,-

(a)

.....

(b)

he had been a member of the Indian Legal Service under the Central Government, or

(c)

he had at least for ten years,-

(i)

been a member of Judicial Service; or

(ii)

held an office under the Central Government or a State Government requiring special knowledge of law after enrolment as an advocate; or

(iii)

held an office in the department of Judge Advocate General or in the legal department of the armed forces."

[FORM II-A]

[Substituted by S.O. 1353, dated 6-6-1956.]

REGISTER OF NOTARIES

[See rule 8(5)]

Sl. No.

Full Name and date of birth of notary

Residential and professional addresses of notary

Date on which the name of notary is entered in the register

Qualifications of notary

Area in which notary may practice

Remarks

[Form II-B]

[Substituted by G.S.R. 870(E), dated 8-7-1997 (w.e.f. 8-7-1997).]

[See rule 8(5)]

Government Of.....

(Emblem)

Certificate Of Practice

Certified that.....son/daughter/wife.....of.....resident of.....has been appointed as a notary under the Notaries Act, 1952 (53 of 1952

) and is authorized to practice as such in and throughout.....for a period of [three years]

[Substituted by G.S.R. 547(E), dated 31-8-1998, for five years]

.....

Given under my hand and seal of the Government ofthis.....day of.....

Dated.....day of.....20.....

[Joint Secretary to the Government of India/Additional Secretary to the Government of India/Secretary to the Government of (Name of the State)]

[Substituted 'Joint Secretary to the Government of India/Secretary to the Government of (Name of the State)' by Notification No. G.S.R. 77(E) dated 30.1.2019 (w.e.f. 15.2.1956).]

FORM III

FORM OF NOTING FOR DISHONOUR

(See section 8)

(To be made upon the instrument or upon a paper attached thereto, or partly upon each).

Reference to page in Notarial Register.....

Date of presentment and dishonour by non-acceptance/non-payment

Reason, if any, assigned for dishonour (or, if the instrument has not been expressly dishonoured, reason why holder treats it as dishonoured).

Date of note.....

.....

Signature of Notary

Notary's charges

FORM III-A

FORM OF NOTING FOR DISHONOUR

(See section 8)

(To be entered in the Notarial Register)

(Copy of the bill and endorsements)

On the.....day of.....20.....the above bill was, at the request of.....(here give the name), presented by me for acceptance to.....(here give the name), the drawee personally (at his residence or usual place of business) in.....(town or village) and, I received, the following answer:-

.....

.....

(The said bill, is therefore, noted for non-acceptance.)

Place and date.....

.....

Signature of Notary

(This note is to be signed in the margin by the notary's clerk also if he presented the bill).

FORM IV

FORM OF PROTEST OF BILL OF EXCHANGE FOR NON-ACCEPTANCE

(See section 8)

On the.....day of.....20....I,.....(here give the name), notary appointed under the Notaries Act, 1952,

of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name) of.....did, at.....in person, and having failed to do so, then by registered letter cause due and customary presentment to be made to, and did demand acceptance of the bill of exchange hereto annexed) or "a literal transcript where of and of everything written or printed thereon is hereto annexed") from(there give the name), the person upon whom the said bill is drawn, to which demand he made answer (state terms of answer, if any)(or "to which demand he gave no answer") wherefore, I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and.....(here give the name), witnesses, protest the drawer of the said bill of exchange and all other parties thereto and all others concerned for all exchange, re-exchange and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of acceptance of the said bill.

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

FORM IV-A

FORM OF ACTS OF HONOUR

(a)

Act of honour on acceptance. (To be written at the foot of the protest).

Afterwards appeared before me, the said notary, on the.....day of.....20.....(here give the name), and declared that he would accept the bill of exchange before protested under protest for the honour and upon the account of.....(here give the name), the second endorser on the said bill.

Holding the second endorser and all others concerned always bound and obliged to indemnify him, the said appearer, for his said acceptance and in case of payment of by him, for his re-imbusement in due form of law and according to custom.

Which I attest

.....

Signature of Notary

Place and date.....

(b)

Act of honour on payment. (To be written at the foot of the protest).

Afterwards appeared before me, the said notary, on the.....day of.....20..... (here give the name), and declared that he would pay the bill of exchange before protested under protest for the honour and upon the account of.....(here give the name), the endorser on the said bill.

Holding the said endorser and all others concerned always bound and obliged for reimbursement in due form of law and according to custom.

Amount

Rs.....

Notarial charges

Rs.....

Which I attest

Signature of Notary

Place and Date.....

Received this.....day of.....20.....,from..... (here give the name), the sum of Rs....., the amount of the said bill and notarial charges thereon.

.....

Signature of Notary

FORM V

FORM OF PROTEST OF BILL OF EXCHANGE FOR NON-ACCEPTANCE WHEN THE DRAWEE CANNOT BE FOUND

(See section 8)

(a)

Where search was made by notary in person.

On the.....day of.....20....., I..... (here give the name), a notary appointed under the Notaries Act, 1952 ofin.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of....., did in person make due search at.....for.....(here give the name), in order to present to and demand from him acceptance of the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") which is drawn upon the said.....(here give the name), but was unable to find him; wherefore, I, the said notary, at the request aforesaid, by this writing, do in the presence of.....(here give the name), and.....(here give the name), witnesses protest against the drawer of the said bill of exchange and all other parties thereto and all others concerned for all exchange, re-exchange and all costs, damages and interest present and to come for want of acceptance of the said bill.

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

(b)

Where registered letter was sent to the drawee.

On the.....day of.....20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of.....in (here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of, did send by post a registered letter addressed to.....(here give the name) at.....where in I enclosed and demanded from him acceptance of the bill of exchange thereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") which is drawn upon the said.....(here give the name) but the letter was returned undelivered because the said.....(here give the name) could not be found; wherefore I, the said notary at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and.....(here give the name), witnesses, protest against the drawer of the said bill of exchange and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages and interest present and to come for want of acceptance of the said bill.

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

FORM VI

FORM OF PROMISSORY NOTE OR BILL OF EXCHANGE FOR NON-PAYMENT

(See section 8)

On the.....day of.....20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of.....did at.....in person and having failed to do so, then by registered letter, cause due and customary presentment to be made to and demand payment of the promissory note (or bill of exchange, as the case may be) here to annexed (or "literal transcript whereof, and of everything written or printed) thereon is hereto annexed") from.....(here give the name) the maker of the said promissory note (or drawee, acceptor, of the said bill of exchange, as the case may be), to which demand he made answer"); (state the term of his answer, if any) (or "to which demand he gave answer"); wherefore, I, the said notary, at the request aforesaid by his writing, do in the presence of(here give the name), and(here give the name), witnesses protest against the maker of the said promissory note (or the drawer of the said bill of exchange, as the case may be) and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of payment of the said promissory note (or bill of exchange, as the case may be).

Which I attest

.....

Signature of Notary

Place and date.....

Signatures of witnesses

(Should be of the locality)

1.

.....

2.

.....

FORM VII

FORM PROTEST OF PROMISSORY NOTE OR BILL OF EXCHANGE FOR NON-PAYMENT WHEN THE MAKER, DRAWEE, OR ACCEPTOR (AS THE CASE MAY BE) CANNOT BE FOUND

(See section 8)

(a)

Where search was made by notary in person.

On the.....day of.....20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in....., at the request of.....(here give the name) of.....did in person make due search at.....for.....(here give the name), the maker (or drawee, or acceptor, as the case may be) in order to present to and demand from him payment of the promissory note (or bill of exchange, as the case may be) hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed") but was unable to find him wherefore, I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name), and.....(here give the name), witnesses, protest against the maker of the said promissory note (or drawer of said bill of exchange, as the case may be) and all other parties thereto and all others, concerned for all exchange, re-exchange, and all costs, damages, the interest present and to come for want of payment of the said promissory note (or bill of exchange, as the case may be).

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

(b)

Where registered letter was sent to the maker, drawee or acceptor.

On the.....day of.....20.....I,.....(here give the name) a notary appointed under the Notaries Act, 1952,

of.....in.....(here state the local area for which the notary has been appointed) in....., at the request of.....(here give the name), of....., did sent by post a registered letter addressed to.....(here give the name) at.....the maker or drawee, acceptor, as the case may be), wherein I enclosed and demanded from him payment of the promissory note (or bill of exchange as the case may be), hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed"), but the letter was returned undelivered because the said.....(here give the name), could not be found; wherefore I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and.....(here give the name) witnesses, protest against the maker of the said promissory note (or the drawer of the said bill of exchange, as the case may be) and all other parties thereto and all other concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of payment of the said promissory note (or bill of exchange, as the case may be).

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality

1.

.....

2.

.....

FORM VIII

FORM OF PROTEST OF BILL OF EXCHANGE FOR BETTER SECURIT

(See section 8)

On the.....day of.....20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), did exhibit the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed therein is hereto annexed") to.....(here give the name), the person on whom the said bill is drawn, and whose acceptance appears thereon, and did demand better security for the payment thereof when the same should become payable in consequence of the said.....(here give the name), having become insolvent (or "his credit having been publicly impeached", as the case may be), to which demand he made answer, (state the terms of the answer if any), (or "to which demand he gave no answer"); wherefore I, the said notary, at the request aforesaid, by this writing, do, in the presence of.....(here give the name) and(here give the name), witnesses, protest against the drawer of the said bill of exchange and the acceptor and all other parties thereto, and all others concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come for want of better security for the payment of the said bill when due and payable.

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

FORM IX

FORM OF PROTEST OF BILL OF EXCHANGE FOR BETTER SECURITY WHEN THE ACCEPTOR CANNOT BE FOUND

(See section 8)

(a)

Where such protest was made by notary in person.

On the.....day of.....20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952 of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of.....did not in person make due search at.....for.....(here give the name) in order to exhibit the bill of exchange hereto annexed ("or a literal transcript whereof and of everything written or printed thereon is hereto annexed") to the said.....(here give the name) the person on whom the said bill is drawn, and whose acceptance appears thereon, and demand better security for the payment thereof, when the same should become payable in consequence of his having become insolvent (or "his credit having been publicly impeached", as the case may be), but was unable to find him; wherefore I, the said notary, at the request aforesaid, by this writing, do in the presence of.....(here give the name) and.....(here give the name) witnesses, protest against the drawer of said bill of exchange and the acceptor and all other parties thereto and all other concerned for all exchange, re-exchange, and all costs, damages, and interest present and to come or want of better security for the payment of the said bill when due and payable.

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

(b)

Where registered letter was sent to the acceptor.

On the.....day of.....20.....I,.....(here give the name) a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in.....at the request of.....(here give the name), of.....did send by post a registered letter address to.....(here give the name), at.....wherein I enclosed the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed"), and did the such letter demand from the said.....(here give the name), the person on whom the said bill is drawn and whose acceptance appears thereon, better security for the payment thereof when the same should become payable in consequence of his having become insolvent (or "his credit having been publicly impeached", as the case may be), but the said letter was returned undelivered because the said.....(here give the name) could not be found; wherefore I, the said notary, at the request aforesaid, by this writing, do in the presence of.....(here give the name) and(here give the name), witnesses, protest against the drawer of the said bill of exchange and the acceptor and all other parties thereto and all others concerned for all exchange, re-exchange, and all costs, damages and interest present and to come for want of better security for the payment of the said bill when due and payable.

Which I attest

.....

Signature of Notary

Place and date.....

Signature of witnesses

(Should be of the locality)

1.

.....

2.

.....

FORM X

(See section 8)

FORM OF NOTICE OF PROTEST TO DRAWER TO BE GIVEN BY NOTARY

Take notice that a bill of exchange for.....(here state the amount) drawn by you under date the.....on.....and

payable at.....has been dishonored by nonacceptance (or non-payment, as the case may be) and protested, and that you will be held liable thereon.

.....
Signature of Notary

Place and date.....

FORM XI

FORM OF NOTICE OF PROTEST TO ENDORSER TO BE GIVEN BY NOTARY

(See section 8)

Take notice that a bill of exchange for.....(here state the amount) drawn by.....and payable at.....and bearing your endorsement has been dishonoured by non-acceptance (or non-payment, as the case may be) and protested, and that you will be held liable thereon.

.....
Signature of Notary
Place and Date.....

FORM XII

FORM OF NOTARIAL ACT OF DECLARATION HAVING BEEN MADE BY A PAYER FOR HONOUR

(See section 8)

On the.....day of..... 20.....I,.....(here give the name), a notary appointed under the Notaries Act, 1952, of.....in.....(here state the local area for which the notary has been appointed) in.....do hereby certify that the bill of exchange hereto annexed (or "a literal transcript whereof and of everything written or printed thereon is hereto annexed")(now protested for non-payment) was this day exhibited to.....(here give the name), of.....in the State of.....(or to(here give the name), his agent in this behalf, as the case may be), who declared before me that he, the said.....(here give the name), would pay the amount of the said bill under protest for the honour of.....(here inset the name of the party for whose honour the payment is to be made), holding the said.....(here insert the name of the party for whose honour the payment is to be made) and the drawer and all other proper persons responsible to him, the said.....(here give the name), for the amount of the said bill and for all proper costs, interest, damages, and expenses; I have, therefore, in the presence of.....(here give the name) and(here give the name), witnesses, granted this Notarial Act of honour accordingly.

Which I attest

.....
Signature of Notary
Place and date.....
Signature of witnesses
(Should be of the locality)

1.
.....
2.
.....

[FORM XIII

[Inserted by S.O. 774, dated 8-3-1957.]

FORM OF COMPLAINT

Before the appropriate government under the Notaries Act, 1952

Between.....
.....petitioner
and.....
.....respondent

Petitioner's
address.....

.....
Respondent's
address.....

.....
Particulars of complaint in paragraphs consecutively
numbered.....

Particulars of evidence oral and documentary, if any, to substantiate the
complaint.....

Verification

I,....., the petitioner do hereby declare that what is stated above is true to the best of
my information and belief.

Verified today the.....day of.....20.....at.....

.....

Signature]

[FORM XIV]

[Inserted by S.R.O. 1285, dated 20-3-1957]

FORM OF RETURN TO BE SUBMITTED BY A NOTARY

(See rule 14)

1. Name and address of
notary.....

.....

2. Registration
number.....

.....

3. Particulars of notarial acts done during the year
.....

Type of work

Name of cases

Fee charged

1.

Noting an instrument

2.

Protesting an instrument

3.

Recording a declaration of payment for honour.

4.

Duplicate protests.

5.

Verifying, authenticating, certifying or attesting the execution of any instrument.

6.

Presenting any promissory note, hundi or bill of exchange for acceptance or payment or demanding better security.

7.

Administering oath to, or taking affidavit from any person.

8.

Preparing any instrument intended to take effect in any country or place outside India in such form and language as may
conform to the law of the place where such deed is intended to operate.

9.

Attesting or authenticating any instrument intended to take effect in any country or place outside India in such form and
language as may conform to the law of the place where such deed is intended to operate.

10.

Translating and verifying the translation of, any document from one language into another.

11.

Other notarial acts.

.....

Signature of Notary

Place and Date.....

[FORM XV

[Inserted by S.O. 83, dated 28-12-1965.]

NOTARIAL REGISTER

(See rule 11(2))

Sl. No.

Date

Name of notarial act

Name of executant or person concerned with full address

Contents of document

Notarialfee stamp affixed

Prescribed fee

Fee charged

Sl. No. of Receipt Book

Signature of person concerned

Signature of notary]

1

2

3

4

5

6

7

8

9

10

11

[Form XVI]

[Inserted by Notification No. G.S.R. 821(E), dated 5.11.2019 (w.e.f. 14.2.1956).]

[See rule 8B]

To,

The Law Secretary,

Department of Legal Affairs,

Ministry of Law and Justice,

Shastri Bhawan,

New Delhi.

Subject- Request for renewal of Certificate of Practice w.e.f. _____

(Regn. No. _____)

Sir,

The applicant was appointed as Notary vide Registration No. _____ w.e.f. _____ to practice as such, in and throughout _____. You are requested to renew the same w.e.f. _____ to _____ at the earliest.

Name of the Applicant

Date:

Place:

Related AI tags, queries and research notes

Translation